Essay Structure

State of Minnesota v. Derek Chauvin – proving causation of death · max. 1500 words (incl. footnotes and bibliography) · due 9 October 2026, 23:59

Model: follow the 10 essay, not the 6.5

- **The 6.5** used the assignment's topics as separate headings and saved the comparison for the end – mostly description, with a short, isolated comparison.
- **The 10** followed the hearing **in the order things happened** and, at each step, added a comparison ("In a common law system, this role would be taken by the prosecutor…") and a critical point. All required topics were covered, woven into one narrative.

Method for every paragraph: what happened → which participant did what → comparison or critique.

Structure: follow the trial in order

1. Introduction (~150 words)

- The case, court (Hennepin County District Court), judge (Peter Cahill) and the dates you watched; one sentence of facts.
- Your focus: causation, the most contested element.
- Your central question.

2. What had to be proven (~150 words)

- The three charges in one sentence, plus causation quoted from the jury instructions ("substantial causal factor") in a footnote.
- One comparative sentence on Portuguese *causalidade adequada* (art. 10 of the Penal Code).

3. Opening statements, 29 March (~150 words)

- Each side's theory of causation.
- *Comparison:* the parties present the case to a jury with no file; in a continental system the judge opens the hearing with the case file already read (the *tabula rasa* point).

4. Dr Tobin, 8 April (~200 words)

- How the expert is qualified, and how he interprets the video frame by frame.
- *Critique:* the meaning of the video depends on the expert chosen by a party.
- *Comparison:* party-appointed experts versus court-appointed experts (art. 151 ff. CPP; the NFI in the Netherlands).

5. Dr Baker, 9 April (~200 words)

- The cross-examination draws out concessions (the airway; fentanyl "in other circumstances").
- *Critique:* is cross-examination a strength, because it exposes weaknesses, or a risk, because it confuses lay jurors?
- *Comparison:* questioning by the judge in continental systems.

6. Dr Fowler and Tobin's rebuttal, 14–15 April (~200 words)

- The defence's alternative causes; the prosecution's cross-examination on carbon monoxide; Tobin rebutting it.
- *Critique:* the "battle of experts": a lay jury must choose between experts who contradict each other.
- One sentence: Chauvin chose not to testify (Fifth Amendment), compared with the judge questioning the defendant in continental systems.

7. Closing arguments, 19 April, and the verdict (~200 words)

- How each side asked the jury to weigh the experts.
- *The key comparison:* a unanimous verdict with no reasons given, versus a reasoned judgment (art. 163 CPP; ECtHR, *Taxquet v Belgium*). Tie in **Damaška's two models** here.

8. Conclusion (~70 words)

- Answer your central question with a balanced judgement, like the 10 essay's last paragraph.

Footnotes and bibliography (~80 words)

- Jury instructions; hearing dates and video sources (with timestamps); Portuguese Penal Code art. 10 and CPP arts. 151 and 163; Damaška; ECtHR *Taxquet v Belgium*; your course material. Keep footnotes short – they count.

Check: are all assignment topics covered?

Because you aren't using the assignment's headings, make sure each required topic appears somewhere:

Required topic	Where it appears
Case, court, date	Section 1
What must be proven	Section 2
Evidence taken	Sections 4–6
Role of participants	Throughout: parties (3, 7), experts (4–6), judge (3, 7), jury (6–7), defendant (6)
Critical comparative analysis	In every section, plus the conclusion

Short headings (such as the dates) are fine for readability. What matters is that the comparison runs through every section, as in the 10 essay.